

Transfer Of Ownership

About

- Transfer of ownership in case of normal sale

When a vehicle is sold, the name of the purchaser is noted as the registered owner in place of the previous registered owner and the process is known as transfer of ownership.

- Transfer of ownership on death of owner of the vehicle

When the registered owner of a vehicle dies, transfer of ownership is affected in favour of the legal heirs of the deceased registered owner. Where the owner of a motor vehicle dies, the person

succeeding to the possession of the vehicle may for a period of three months, use the vehicle as if it has been transferred to him where such person has, within thirty days of the death of the

owner informs the registering authority of the occurrence of the death of the owner and of his own intention to use the vehicle

- Transfer of ownership of vehicle purchased in public auction

When a vehicle is sold in public auction, the name of the purchaser is noted as the registered owner in place of the previous registered owner and the process is known as transfer of ownership on

auction.

Guidelines

- Transfer of ownership in case of normal sale
 - Where the ownership of a motor vehicle is transferred, the transferor shall report the fact of transfer in Form 29 to the registering authorities concerned in whose jurisdiction the transferor and the transferee reside or have their places of business.
 - in the case of a vehicle registered within the same State, within fourteen days of the transfer, application for the transfer of ownership of a motor vehicle shall be made by the transferee in Form 30 to the registering authorities, and shall be accompanied by set of documents given below under Document A
 - in the case of a vehicle registered outside the State, within forty-five days of the transfer, application for the transfer of ownership of a motor vehicle shall be made

by the transferee in Form 30 to the registering authorities, and shall be accompanied by set of documents given below under Document A and Document B

- Pay appropriate fee and tax as specified in rule 81 of the Central Motor Vehicle Rules 1989
- Transfer of ownership on death of owner of the vehicle
 - Apply in Form 31 within the period of three months to the registering authority for the transfer of ownership of the vehicle in your name
 - Pay appropriate fee and tax as specified in rule 81 of the Central Motor Vehicle Rules 1989
- Transfer of ownership of vehicle purchased in public auction
 - The person who has acquired or purchased a motor vehicle at a public auction conducted by or on behalf of the Central Government or a State Government shall apply in Form 32 within thirty days of taking possession of the vehicle to the registering authority
 - Pay appropriate fee and tax as specified in rule 81 of the Central Motor Vehicle Rules 1989

Documents required

- Transfer of ownership in case of normal sale
 - Form 29
 - Form 30

Document A

- Certificate of registration
- Certificate of insurance
- Certificate of pollution under control*
- PAN card (seller and purchaser) or Form 60*
- Pencil Print of Chassis & Engine Number *
- Proof of Date of Birth of purchaser(if applicable)*
- Proof of address*
- Purchaser's undertaking*
- Passport size photograph*
- Tax clearance certificate*

Document B

- A no objection certificate granted by the registering authority
- an order of the registering authority refusing to grant the no objection certificate; or
- where the no objection certificate or the order, as the case may be, has not been received, a declaration by the transferor that he has not received any such communication together with—
 - The receipt obtained from the registering authority; or
 - The postal acknowledgement received from the registering authority where the application for no objection certificate has been sent by post.
- Transfer of ownership on death of owner of the vehicle
 - Form 31
 - Certificate of registration
 - Certificate of insurance
 - Death certificate in relation to the registered owner
 - Certificate of pollution under control*
 - PAN card (successor) or Form 60*
 - Pencil Print of Chassis & Engine Number *
 - Proof of Date of Birth of successor*
 - Proof of address*
 - Signature Identification of Seller*
 - Declaration by the applicant and all other Legal Heirs of the deceased*
 - Verification of vehicle on Form 20*
 - Passport size photograph*
 - Proof of succession*

Transfer of ownership of vehicle purchased in public auction

- Form 32
- Certificate of registration
- Certificate of insurance
- Certificate or order confirming the sale of the vehicle in his favour duly signed by the person authorised to conduct the auction; and
- Certified copy of the order of the Central Government or State Government authorising the auction of the vehicle
- Certificate of pollution under control*
- PAN card (seller and purchaser) or Form 60*

- Pencil Print of Chassis & Engine Number *
- Proof of Date of Birth of purchaser(if applicable)*
- Proof of address*
- Purchaser's undertaking*
- Passport size photograph*

Reference

- The Motor Vehicles Act 1988 (Section 50 of Chapter IV)
- The Central Motor Vehicles Rules 1989 (Rule 55, 56, 57)
- Official website of State Transport Department

Documents marked with asterisk (k) may be required in some states.